

Section 10.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
41 & 42 Vict. c. 49	The Weights and Measures Act, 1878.	In section thirty-seven the words "nor shall any fee be payable on the verification or re-verification of any local standard."
52 & 53 Vict. c. 21	The Weights and Measures Act, 1889.	In section eight the words "not being standards for the use of a local authority or their officers and".
57 & 58 Vict. c. 60	The Merchant Shipping Act, 1894.	Subsection (3) of section two hundred and six. The Third Schedule. The Ninth Schedule.
61 & 62 Vict. c. 44	The Merchant Shipping (Mercantile Marine Fund) Act, 1898.	The First Schedule.

CHAPTER 5.

An Act to amend the Dangerous Drugs Act, 1920, and section seventeen of the Pharmacy Act, 1868, and to prescribe the method of calculating percentages in liquid preparations for the purpose of the Poisons and Pharmacy Act, 1908, and the Dangerous Drugs Act, 1920.
[17th May 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The following subsection shall be inserted in section ten of the Dangerous Drugs Act, 1920, after subsection (1) thereof:—

"(1A) If a justice of the peace (or in Scotland either a justice of the peace or a sheriff) is

Amendment
of s. 10 of
Dangerous
Drugs Act,
1920.
10 & 11
Geo. 5. c. 46.

satisfied by information on oath that there is reasonable ground for suspecting that any drugs to which this Act applies are, in contravention of the provisions of this Act or any regulations made thereunder, in the possession or under the control of any person in any premises, or that any document directly or indirectly relating to or connected with any transaction or dealing which was, or any intended transaction or dealing which would if carried out be, an offence against this Act, or in the case of a transaction or dealing carried out or intended to be carried out in any place outside Great Britain, an offence against the provisions of any corresponding law in force in that place, is in the possession or under the control of any person in any premises, he may grant a search warrant authorising any constable named in the warrant, at any time or times within one month from the date of the warrant, to enter, if need be by force, the premises named in the warrant, and to search the premises and any persons found therein, and, if there is reasonable ground for suspecting that an offence against this Act has been committed in relation to any such drugs which may be found in the premises or in the possession of any such persons, or that any document which may be so found is such a document as aforesaid, to seize and detain those drugs or that document, as the case may be."

(2) The words "any books or documents" shall be substituted for the words "any books" in subsection (1) of the said section ten, and the words, "any such books, stocks, drugs, or documents" shall be substituted for the words "any such books or stocks" in subsection (2) of that section.

2.—(1) The following subsections shall be substituted for subsections (1) and (2) of section thirteen of the Dangerous Drugs Act, 1920:—

Amendment
of s. 13 of
Dangerous
Drugs Act,
1920.

"(1) Any person—

(a) who acts in contravention of, or fails to comply with, any regulation made under this Act; or

*Dangerous Drugs and 13 & 14 GEO. 5.
Poisons (Amendment) Act, 1923.*

- (b) who acts in contravention of, or fails to comply with, the conditions of any licence issued or authority granted under or in pursuance of this Act ; or
- (c) who for the purpose of obtaining, whether for himself or for any other person, the issue, grant or renewal of any such licence or authority as aforesaid, makes any declaration or statement which is false in any particular, or knowingly utters, produces or makes use of any such declaration or statement or any document containing the same ; or
- (d) who in Great Britain aids, abets, counsels or procures the commission in any place outside Great Britain of any offence punishable under the provisions of any corresponding law in force in that place, or does any act preparatory to, or in furtherance of, any act which if committed in Great Britain would constitute an offence against this Act ;

shall be guilty of an offence against this Act.”

“(2) Every person guilty of an offence against this Act shall, in respect of each offence, be liable —

- (a) on conviction on indictment, to a fine not exceeding one thousand pounds, or to penal servitude for a period not exceeding ten years, or to both such fine and penal servitude ; or
- (b) on summary conviction, to a fine not exceeding two hundred and fifty pounds, or to imprisonment with or without hard labour for a term not exceeding twelve months, or to both such fine and imprisonment ;

and shall, in every case on conviction for the offence, forfeit to His Majesty all articles in respect of which the offence was committed, and the court before which the offender was convicted may order any forfeited articles to be destroyed or otherwise disposed of as the court thinks fit.”

“One half of the amount of any fine imposed by a court of summary jurisdiction in pursuance of this section in proceedings taken by the direction of a Secretary of State or by, or by the direction of, the Director of Public Prosecutions shall, notwithstanding anything in any other enactment, be paid into the Exchequer in such manner as the Treasury may from time to time direct.”

“(2A) Subject as hereinafter provided, no person shall in England or Wales be proceeded against by indictment for an offence under this Act unless the proceedings are instituted by, or with the consent of, the Attorney-General or by the Director of Public Prosecutions, and no person shall, on conviction for any offence of contravening or failing to comply with any regulation under this Act relating to the keeping of books or the issuing or dispensing of prescriptions containing drugs to which this Act applies, be sentenced to imprisonment without the option of a fine or to pay a fine exceeding fifty pounds, if the court dealing with the case is satisfied that the offence was committed through inadvertence and was not preparatory to, or committed in the course of, or in connection with, the commission or intended commission of any other offence against the Act :

Provided that the provisions of this subsection prohibiting proceedings by indictment unless the proceedings are instituted by, or with the consent of, the Attorney-General or by the Director of Public Prosecutions, shall not apply where the person charged claims in pursuance of section seventeen of the Summary Jurisdiction Act, 1879, to be tried by a jury.

42 & 43 Vict.
c. 49.

“(2B) If any person attempts to commit an offence against this Act, or solicits or incites another person to commit such an offence, he shall, without prejudice to any other liability, be liable on summary conviction to the same punishment and forfeiture as if he had committed an offence under this Act.”

“(2c) Where a person convicted of an offence under this Act is a company, the chairman and

every director and every officer concerned in the management of the company shall be guilty of the like offence unless he proves that the act constituting the offence took place without his knowledge or consent."

(2) The provisions of subsection (3) of section thirteen of the Dangerous Drugs Act, 1920, which relates to the time within which proceedings for an offence against that Act may be brought, shall apply to proceedings for attempting or soliciting or inciting another person to commit such an offence as they apply to proceedings for such an offence.

(3) For the purpose of removing doubts, it is hereby declared—

(a) that in any proceedings against any person for an offence against the Dangerous Drugs Act, 1920, as amended by this Act, it is not necessary to negative by evidence any licence, authority or other matter of exception or defence, and that the burden of proving any such matter lies on the person seeking to avail himself thereof; and

(b) that, notwithstanding anything in section eighteen of the Criminal Justice Administration Act, 1914, or in any other enactment, any term of imprisonment imposed under section thirteen of the Dangerous Drugs Act, 1920, on any person by a court of summary jurisdiction in respect of the non-payment of a fine for an offence against that Act may be ordered to commence at the expiration of any term of imprisonment imposed on that person for the same offence in addition to the fine.

4 & 5 Geo. 5.
c. 58.

Amendment
of s. 17 of
Pharmacy
Act, 1868,
as respects
sales to
medical
practitioners,
dentists and

3.—(1) So much of section seventeen of the Pharmacy Act, 1868 (which prescribes certain regulations to be observed in the sale of poisons), as requires an entry in the book to be kept under that section to be signed by the purchaser, shall not, if the conditions mentioned in this section are fulfilled, apply where the purchaser is a registered medical practitioner, and the purchase is made by him for the purposes of his profession.

(2) The conditions to be fulfilled for the purposes of this section are as follows :—

veterinary
surgeons.
31 & 32 Vict.
c. 121.

- (a) There must have been received by the seller before the sale an order in writing signed by the purchaser stating his name and address and the name and quantity of the article to be purchased :
- (b) The seller must be reasonably satisfied that the signature affixed to the order is in fact the signature of the person purporting to sign it, and that that person is a registered medical practitioner :
- (c) The article sold, if sent by post to the purchaser, must be sent by registered post :
- (d) The seller must enter in the book, in the column assigned to the signatures of purchasers, the words "signed order" followed by the date on which the order is executed, and must preserve the order for a period of two years from the date on which the final entry in the book is made :

Provided that, if a seller is reasonably satisfied that a registered medical practitioner desiring to purchase a poison urgently requires it for the purpose of his profession, but is, by reason of some emergency, unable, before delivery, either to furnish to the seller an order in writing duly signed, or to attend and sign the book, the seller may send the poison to the purchaser to be handed over to him either in exchange for such an order or on an undertaking by the purchaser to furnish such an order to the seller within the twenty-four hours next following.

If any purchaser by whom any such undertaking as aforesaid has been given fails to deliver to the seller a signed order in accordance with the undertaking, or if any person for the purpose of obtaining delivery of any poison under the foregoing proviso makes a statement which is to his knowledge false, he shall be deemed to have procured the commission of an offence under the said section seventeen.

(3) This section applies to registered dentists and registered veterinary surgeons as it applies to registered medical practitioners.

Amendment
of s. 17 of
Pharmacy
Act, 1868,
with respect
to sales of
poisons on
medical pre-
scriptions,
&c.

4.—(1) Where any poison to which section seventeen of the Pharmacy Act, 1868, applies is supplied on and in accordance with a written prescription given by a registered medical practitioner under and in accordance with the provisions of the Acts relating to national health insurance, the seller of the poison shall not be required to make any entry in the book in accordance with the requirements of the said section.

(2) The said section seventeen shall have effect as if for the words “labelled with the name of the article and the word poison, and with the name and address of the seller of the poison,” there were substituted the words “labelled with the name and address of the seller of the poison, with the word ‘poison,’ and with the name of the poison, and, in the case of a preparation which contains a poison as one of the ingredients thereof, with such particulars as to the proportion which the poison contained in the preparation bears to the other ingredients as may be prescribed by Order in Council.”

Calculation
of percent-
ages in case
of liquid
preparations.
8 Edw. 7.
c. 55.

5. For the purposes of the Schedule to the Poisons and Pharmacy Act, 1908, and of section eight of the Dangerous Drugs Act, 1920, percentages in the case of liquid preparations shall, unless other provision in that behalf is made by regulations under those Acts respectively, be calculated on the basis that a preparation containing one per cent. of any substance means a preparation in which one gramme of the substance, if a solid, or one millilitre of the substance, if a liquid, is contained in every one hundred millilitres of the preparation, and so in proportion for any greater or less percentage.

Short title,
interpreta-
tion and
extent.

6.—(1) This Act may be cited as the Dangerous Drugs and Poisons (Amendment) Act, 1923, and the Dangerous Drugs Act, 1920, and this Act, in so far as it amends that Act, may be cited together as the Dangerous Drugs Acts, 1920 and 1923.

(2) The expression “corresponding law” in the Dangerous Drugs Act, 1920, as amended by this Act, means any law stated in a certificate purporting to be issued by or on behalf of the government of any country outside Great Britain to be a law providing for the control and regulation in that country of the manufacture, sale, use, export and import of drugs in accordance with the provisions of the International Opium Convention signed

at the Hague on the twenty-third day of January, nineteen hundred and twelve, and any statement in any such certificate as to the effect of the law mentioned in the certificate, or any statement in any such certificate that any facts constitute an offence against that law, shall be conclusive.

(3) This Act shall not extend to Northern Ireland, except in so far as it amends the Dangerous Drugs Act, 1920, in relation to matters with respect to which the Parliament of Northern Ireland have not power to make laws.

CHAPTER 6.

An Act to extend the duration of and amend certain provisions of the Local Authorities (Financial Provisions) Act, 1921, and the Poor Law Emergency Provisions (Scotland) Act, 1921.
[17th May 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Section one of the Local Authorities (Financial Provisions) Act, 1921 (which provides for the temporary extension of charges on the Metropolitan Common Poor Fund), shall continue in force until the first day of April, nineteen hundred and twenty-four, as if in that section for the words "thirty-first day of December, nineteen hundred and twenty-two," there were substituted the words "first day of April, nineteen hundred and twenty-four," subject as respects the half year current on the said thirty-first day of December and any subsequent half year ending before the said first day of April to the following modifications:—

- (a) The Metropolitan Poor Amendment Act, 1870, as amended by subsection (1) of the said section one shall have effect as if a farm colony the persons in which are maintained by boards of guardians were an asylum provided under the Metropolitan Poor Act, 1867.

Continuance,
subject to
amendment
of 11 & 12
Geo. 5. c. 67.
s. 1.

33 & 34 Vict.
c. 18.

30 & 31 Vict.
c. 6.